

25STCV14381 25STCV14381

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV14381 Hearing Date: July 30, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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LEON AHDOOT,

Plaintiff(s),

vs.

SHAHRAM

MOKHTARZADEH, et al.,

Defendant(s).

Case No.:

25STCV14381

Hearing Date:

July 30, 2026

[TENTATIVE]

ORDER RE: OSC RE: APPOINTMENT OF RECEIVER

Plaintiff Leon Ahdoot ("Plaintiff"), individually and as trustee of The L&L Ahdoot Family Trust ("Trust") seeks an order appointing Stephen J. Donell ("Donell") as receiver for nominal defendants Oxford Financial, Inc. ("Oxford"), Santa Fe Corner, LLC ("Santa Fe"), and Santa Monica Corner, LLC ("Santa Monica") (collectively, "Businesses") pursuant to a joint stipulation by the parties.

The unopposed request is denied.

I.

Background

1.

Factual Background

In February 2009, Plaintiff and defendant Shahram Mokhtarzadeh ("Mokhtarzadeh") formed Oxford, a California corporation. (Ahdoot Decl., ¶ 3.) Plaintiff and Mokhtarzadeh were and have since been equal 50% owners of Oxford (Ahdoot Decl., ¶ 4.) Plaintiff and Mokhtarzadeh elected themselves to the two seats on Oxford's Board of Directors ("Board"). (Ahdoot Decl., ¶ 5; RJN Ex. 14.)

On February 23, 2009, the Board held its first meeting and adopted Oxford's bylaws. (Ahdoot Decl., ¶ 7, Exs. 1-2.)

On February 26, 2009, the Plaintiff and Mokhtarzadeh signed a Shareholders' Agreement relating to Oxford. (Ahdoot Decl., ¶ 10, Ex. 3.)

On March 3, 2009, Plaintiff and Mokhtarzadeh formed nominal defendants Santa Monica and Santa Fe. (Ahdoot Decl., ¶ 1; RJN Exs. 4-5.) Plaintiff held and still holds a 49% interest in Santa Monica and Santa Fe as trustee for the Trust. (Ahdoot Decl., ¶¶ 12, 17.) Mokhtarzadeh directed his 49% interest in Santa Monica and Santa Fe to defendant 3A Family Limited Partnership ("3AF Limited Partnership"), which still holds that interest. (Ahdoot Decl., ¶¶ 13, 17.) Oxford held and still holds the remaining 2% interest in Santa Monica and Santa Fe. (Ahdoot Decl., ¶¶ 16-17.) Plaintiff and Mokhtarzadeh agreed that Oxford would be the sole manager of both Santa Monica and Santa Fe. (Ahdoot Decl., ¶ 18.)

On or about March 11, 2009, Oxford, Mokhtarzadeh for 3AF Limited Partnership, and Plaintiff for the Trust all agreed to Operating Agreements for Santa Monica and Santa Fe. (Ahdoot Decl., ¶¶ 19-20, Exs. 4-5.) Santa Monica and Santa Fe each acquired one piece of income-producing real property. (Ahdoot Decl., ¶ 21; RJN Exs. 6-8.)

On December 27, 2023, Mokhtarzadeh recorded one quitclaim deed each for Santa Monica and Santa Fe purporting, as a member of the LLCs, to transfer a 49% interest in each company's real property to 3AF Limited Partnership. (Ahdoot Decl., ¶ 22; RJN Exs. 9-10.)

Plaintiff never agreed to change the structure or manager of either Santa Monica or Santa Fe, nor did he consent to transfer any real property interest away from Santa Monica or Santa Fe. (Ahdoot Decl., ¶¶ 23-30.)

Because Plaintiff and Mokhtarzadeh can no longer agree on how to operate Oxford, neither Oxford nor Santa Fe have filed a corporate tax return since 2018, and Santa Monica has not filed annual tax returns since 2021. (Ahdoot Decl., ¶¶ 34-42, Exs. 6-9.) On July 1, 2025, Plaintiff received a Notice of Suspension from the Franchise Tax Board. (Ahdoot Decl., ¶ 39, Ex. 7.)

2.

Procedural History

On May 15, 2025, Plaintiff filed this action against defendants Mokhtarzadeh, 3AF Partnership, ISMRE, Inc. ("ISMRE"), and 3AF Limited Partnership (collectively, "Defendants"), naming Santa Monica, Santa Fe, and Oxford as nominal defendants. On July 21, 2025, Defendants filed their answer to Plaintiff's complaint.

On July 29, 2025, the court denied Plaintiff's ex parte application for a temporary restraining order, order to show cause ("OSC") re: preliminary injunction, and appointment of a provisional director for Oxford for failure to show emergency justifying ex parte relief.

On March 24, 2026, Plaintiff filed an ex parte application for an OSC re: appointment of a provisional director for Oxford. On March 25, 2026, the Court, pursuant to the parties' oral stipulation at hearing, deemed Plaintiff's application a noticed motion for appointment of a

provisional director for Oxford. The Court set the hearing on the motion for May 21, 2026.

On May 21, 2026, pursuant to the parties' joint stipulation filed that day, the Court continued the hearing to July 9, 2026.

Plaintiff thereafter filed an ex parte application noticed for hearing for July 9, 2026.

The application sought appointment of a "limited purpose" receiver for the Businesses pursuant to the parties' joint stipulation, apparently instead of the provisional director for which Plaintiff had previously moved. The Court denied the application for failure to show any basis for ex parte relief. The Court set an OSC re: appointment of receiver for July 30, 2026, directing Plaintiff to file a brief of no more than five pages, as well as any amended proposed receivership order, no later than July 17, 2026. The Court gave Defendant leave to file a response no later than July 24, 2026. The Court likewise took the motion for appointment of a provisional director off calendar.

On July 17, 2026, Plaintiff filed his Court-directed brief.

II.

Legal Standard

The appointment of a receiver is a drastic remedy to be utilized only in "exceptional cases." As such, a receiver should not be appointed unless absolutely essential and because no other remedy will serve its purpose. (*City & County of San Francisco v. Daley*, (1993) 16 Cal.App.4th 734, 744.) Generally, a plaintiff who seeks appointment of a receiver of certain property has the burden to establish by a preponderance of the evidence that plaintiff has a joint interest with defendant in the property, that the property is in danger of being lost, removed or materially injured, and that plaintiff's right to possession is probable. (*AlhambraShumway Mines, Inc. v. Alhambra Gold Mine Corp.*, (1953) 116 Cal.App.2d 869, 873.)

The Court is "not at liberty to create or recognize a nonstatutory receiver, even where the parties have agreed to the appointment of one." (*March v. Williams* (1994) 23 Cal.App.4th 238, 248; *Lewis v. Shaw* (1926) 77 Cal.App. 99, 102 ["jurisdiction to appoint a receiver cannot

be conferred upon a court by stipulation or consent of the parties.”]; First Nat. Bank of Auburn v. Superior Court (1909) 12 Cal.App. 335, 344 [“Where the court has no authority to appoint a receiver, such authority cannot be conferred by consent or stipulation of the parties.”]; Baker v. Varney (1900) 129 Cal. 564, 566; Scott v. Hotchkiss (1896) 115 Cal. 89, 94 [“No stipulation can confer jurisdiction upon the court to appoint a receiver in a case where the court has no such authority given by law.”])

III.

Analysis

When the Court set the instant OSC, the Court ordered Plaintiff to file a brief addressing four issues: (1) the statutory basis for receivership; (2) why a receivership is necessary despite the availability of the less drastic provisional director remedy previously sought; (3) how any proposed receivership powers would be narrowly tailored; and (4) how any proposed order comports with legal standards governing receiverships, including requirements relating to undertakings, court approval mechanisms for professional engagements and expenditures, and the principle that a receiver may not exercise unilateral authority in matters requiring judicial oversight.

Plaintiff relies on Code of Civil Procedure (“CCP”) section 564(b)(6) and (9) to justify appointment of a receiver. Subdivision (b)(6) applies “[w]here a corporation is insolvent, or in imminent danger of insolvency, or has forfeited its corporate rights.” (CCP § 564(b)(6).) Subdivision (b)(9) applies “[i]n all other cases where necessary to preserve the property or rights of any party.” (CCP § 564(b)(9).)

However, Plaintiff made no showing, despite the Court’s express order, of why a receivership is necessary despite availability of appointment of a provisional director. Further, Plaintiff made no showing, despite the Court’s express order, as to how the proposed receiver’s power would be narrowly tailored, only offering that “[t]he parties will attempt to streamline their stipulated appointment order to more clearly delineate which authority they wish the receiver to have and remove any unnecessary authority.” (Suppl. Br. at 5-6.)

In short, the Court ordered Plaintiff to explain why such a drastic remedy is necessary—not merely authorized—and how it could be appropriately narrowed. Plaintiff declined. As noted above, a receiver should

not be appointed unless absolutely essential and because no other remedy will serve its purpose. (City & County of San Francisco v. Daley, supra, 16 Cal.App.4th at 744.) As Plaintiff has not demonstrated a provisional remedy would be insufficient, the Court finds appointment of a provisional director would adequately protect the parties' rights. Accordingly, appointment of a receiver is not appropriate.

IV.

Conclusion

The motion to appoint Donell as receiver for the Businesses is DENIED.

If Plaintiff wishes to have its prior motion for appointment of a provisional director placed back on calendar, Plaintiff can so advise the Court at hearing.

Date: July 30, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You

should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.